

LEGISLATIVE PACKET

The National Sovereignty and Resilience Act

A citizen-authored federal framework — 36 titles, 218 sections

Prepared for congressional staff, committee counsel, and policy reviewers

Contents: fiscal architecture & scored revenue · full Senate & House committee-jurisdiction matrices · cross-committee sequencing analysis · hostile-witness stress test · constitutional posture · priority entry points · evidence standard

Evidence status. Revenue and impact figures are NSRA model estimates on published CBO, JCT, OMB, GAO, Treasury, OECD, and peer-reviewed baselines — internally modeled and sensitivity-tested, **not yet officially scored**. Independent and congressional scoring are pending and welcomed. A companion *Figure-by-Figure Sourcing & Verification* guide accompanies this packet.

Principal Architect: Santonio Sanders · TheAmericanDeal, Inc. · Version 2.0, July 2026

1. What the NSRA Is

The National Sovereignty and Resilience Act (NSRA) is a comprehensive federal statute of 36 titles and 218 sections. It is a mechanical enforcement framework — automatic numeric triggers, strict-liability rules, and self-capitalizing fiscal mechanisms — designed to correct structural market failures without ongoing appropriations or open-ended agency discretion. It does not increase deficit spending; it redirects, recaptures, and rebalances revenue and routes proceeds into the Sovereign Infrastructure Reinvestment Fund (SIRF).

Two design commitments shape the whole bill and are the answers to the two questions staff ask first. **(1) Congress, not the agency, sets every major policy choice and numeric trigger** in the statute itself — the 15% variance threshold, the 50-unit housing cap, the dollar thresholds — leaving agencies ministerial computation rather than delegated policymaking (a deliberate response to *West Virginia v. EPA*). **(2) Small businesses under \$10M in annual revenue are expressly exempt** from all Covered Entity obligations, with free SBA compliance assistance and tiered penalties.

Key figures at a glance

Figure	Value	Evidence status
Year 1 gross revenue	\$749B	Gov. baseline + Internally modeled
True annual deficit reduction	\$554B	Modeled · Sensitivity tested
Balanced budget (central est.)	Year 4	Modeled (range Yr 3–5)
Americans in Year-1 relief	79M+	Gov. baseline (28M uninsured·42M SNAP·9M vets)
Scored revenue streams	~20	Schedule G methodology
Small-business exemption	< \$10M revenue	Statutory text verified

2. How It Pays for Itself — Scored Revenue

No new broad-based taxes on households or small business. The Act redirects value leaving the domestic economy through legal but structurally harmful channels, across seven self-contained subledgers (The 7-Subledger Math Engine™). Representative scored streams with statutory sections:

Stream (sec.)	Yield/yr	Basis	Conf.
SS payroll cap elimination (2408)	\$150B	SSA/CBO wage-base data	High
Corporate rate 21%→28% (2409)	\$110B	JCT corporate-rate scoring	High
IRS enforcement fund (\$15B→net)	\$90B	CBO IRS-enforcement ROI	Med
Carbon dividend fee (2410)	\$85B net	CBO carbon-fee analogs	Med
OECD Pillar Two (2411)	\$75B	OECD/JCT estimates	Med
Financial transaction tax 0.1% (2413)	\$75B	JCT FTT scoring	Med
Step-up basis reform >\$5M (2412)	\$50B	JCT basis-reform scoring	Med
NIMA 0.18% domestic gross >\$100M	\$39.6B	Gross-receipts baseline	Med
Federal land + mineral royalty (2414/15)	\$30B+	Interior/ONRR data	Med
Fin.-sector excess-profits assessment	\$20B	Banking ROE baselines	Med
LBO interest cap (30% EBITDA)	\$18B	JCT interest-limit analog	Med
Carried interest → ordinary income	\$14B	JCT 2021 analog	High
Pharma parity savings — G7 (10-yr)	\$550B	PNAS 2024 differential	Med-Hi
Wage Equalization Assessment (WEA)	TBD	USITC pre-score required	Dev.

Full assumptions and citations for every line: **Schedule G** (Policy Vault) and the companion Verification guide. A statutory gate (Sec. 005) requires CBO certification of revenue sufficiency before any title disbursing >\$500M/yr activates — a control distinct from, and not a substitute for, official CBO scoring of the bill.

3. Committee-Jurisdiction Map

Titles mapped to committees under published House and Senate rules (Rules X and XXV). Primary jurisdiction determines which panel must mark up a standalone provision.

3A · Senate committees

Committee	Lead NSRA titles	Basis
Finance	II (BMP/Medicare), VIII (Pharma Parity), XVII (Student Debt), XXII (Tax/Pillar Two)	Revenue, Medicare, taxation
HELP	III (Healthcare Access), VIII (Pharma mfg/supply), Veteran health	Health, education, labor
Veterans' Affairs	XXV (Veteran Healthcare), XXVI (CPT vet eligibility)	Exclusive over VA programs
Banking, Housing & Urban Affairs	XIV (50-unit cap), XIX (PE Divestiture), XX (Consumer Financial)	Banking, housing
Commerce, Science & Transp.	XI (Manufacturing), XII (Supply Chain), XXIII (Trade), XXVII (Data Tariff)	Commerce, trade
Energy & Natural Resources	XIII (Fossil Transition), XXIX (Grid Sovereignty)	Energy, minerals, nuclear
Armed Services	XXIV (Defense Industrial Base), XXXII (Semiconductor Sovereignty)	Defense procurement
Judiciary	XVIII (Due Process), XXX (ALJ Warrant/1601(c)), Const. architecture	Federal courts, admin law
Agriculture, Nutrition & Forestry	VI (SNAP / Household Stability), XVI (Rural Broadband)	SNAP, farm programs
Foreign Relations	XXIII (Allied Settlement Compact), XXVII (cross-border data)	Treaties, int'l economic policy
Environment & Public Works	XIII (Transition infra), XXIX (grid environ. standards)	Environmental regulation

3B · House committees

Committee	Lead NSRA titles	Basis
Ways & Means	II (BMP/Medicare), VIII (Pharma), XVII (Student Debt), XXII (Tax), XXVI (CPT/APD)	Revenue, entitlements
Energy & Commerce	III (Healthcare Access), VIII (Pharma pricing), XI (Manufacturing), XXVII (Data Tariff)	Broadest House jurisdiction
Financial Services	XIV (Real Estate Cap), XIX (PE Divestiture), XX (Consumer Financial)	Banking, securities, housing
Veterans' Affairs	XXV (Veteran Healthcare), XXVI (CPT vet eligibility)	Exclusive over VA programs
Education & Workforce	XVII (Student Debt/IBR), XXI (Wage Arbitrage / Worker Protections)	Student loans, labor
Armed Services	XXIV (Defense Industrial Base), XXXII (Semiconductor Sovereignty)	Defense manufacturing
Agriculture	VI (Household Stability Guarantee), XVI (Rural Broadband)	SNAP, rural development
Judiciary	XVIII (Due Process), 1601(c) (ALJ Warrant), Const. provisions	Federal courts, admin law
Natural Resources	XIII (Fossil Transition — federal land)	Energy on federal lands
Foreign Affairs	XXIII (Allied Settlement Compact)	Treaties, foreign policy

4. Cross-Committee Sequencing

The analysis identifies jurisdictional sequencing — not constitutional durability — as the primary procedural obstacle. The five highest-probability bottlenecks and the drafting response to each:

Finance vs. HELP (Senate) — Pharma parity

Both claim Schedule F. Frame the compulsory-licensing trigger as a Medicare pricing mechanism (Finance primary) with an FDA implementation rider (HELP secondary); a joint hearing resolves sequencing. Precedent: IRA 2022 used this exact structure.

Ways & Means vs. Energy & Commerce (House) — Healthcare

Draft Title II as a clean revenue/eligibility core (W&M) and Title III as a standalone delivery-system title (E&C) that travel as companion bills — cleaner than one omnibus health title.

Banking vs. Judiciary (Senate) — Housing/due process

Title XVIII is already a standalone due-process framework; give it its own referral path (Judiciary primary, Banking secondary), which strengthens the constitutional record.

Armed Services vs. Commerce — Semiconductors

Draft a national-security findings section into the preamble (Armed Services primary); Commerce takes sequential referral on domestic-manufacturing incentives. Mirrors the CHIPS Act.

Finance vs. Agriculture — Household stability

Draft the Household Stability Guarantee as a SIFR expenditure authorization (Finance/W&M), not a SNAP amendment — the only path that avoids Agriculture obstruction.

5. Hostile-Witness Stress Test

Committee staff apply one filter to every major provision: does the bill already answer the strongest hostile argument before markup? This table applies that exercise to the highest-exposure provisions — the argument a hostile witness makes, the answer already in the text, and the residual risk.

Provision	Strongest hostile argument	Built-in answer	Residual
Title XIV — 50-unit MSA cap	Per se taking; forcing divestiture violates the Fifth Amendment; the cap is arbitrary.	180-day notice; $V_{abs} \leq 4.5\%$ /qtr absorption filter; FMV compensation; multi-year window. A phased, compensated transition — Penn Central satisfied.	LOW
Schedule F — G7 pharma parity	Destroys R&D; compulsory licensing violates TRIPS Art. 31.	Voluntary pathways before mandatory triggers; 8/12/4% royalties preserve R&D; TRIPS-compliant under public-health/excessive-pricing exceptions; G7 median is a market benchmark, not a control.	MED
Title XIII — Fossil transition	Destroys energy-community jobs; no authority to mandate a private transition.	Incentive→transition→compensation→restriction sequence; retraining, pension protection, multi-year windows; delegation explicit in text.	LOW
Title II — BMP / Medicare	Unfunded liability; CBO will score trillions in new deficit.	7-Subledger sourced revenue attribution; three-scenario modeling built in. The CBO question is whether revenue assumptions are credible — not whether balance is the goal.	MED
Sec. 1601(c) — ALJ warrant	Unconstitutional constraint on executive enforcement; Jarkesy requires Article III juries.	Jarkesy (R-10) and Lucia (R-11) already addressed; the 24/7 warrant is a pre-deprivation safeguard that strengthens the Mathews record; Article III jury routing embedded.	LOW
Title XXII — FTT / Pillar Two	FTT is distortionary and drives volume offshore; Pillar Two revenue is speculative.	FTT calibrated to U.S. market-depth data; conservative behavioral assumptions; Pillar Two is a floor on Treasury/JCT methodology. The hardest fiscal stress-test question.	MED
Title XXI — Wage arbitrage	Unconstitutional interference with private labor contracts; beyond the Commerce Clause.	Drafted under Commerce + Necessary-and-Proper authority (NLRA/FLSA precedent); applies to interstate commerce; major-questions addressed by explicit delegation.	MED
Title XXVII — Data tariff	Unconstitutional tax on interstate commerce; conflicts with WTO.	Structured as a customs duty (Art. I, Sec. 8); GATS essential-security exception; extraterritorial provision targets foreign-originated data monetization, not domestic speech.	MED

6. Constitutional Posture

The bill embeds named constitutional defenses in its text and has been through an internal red-team audit against the doctrines most likely to be raised by a well-resourced defendant or a State. Stated plainly: the defenses are real and materially improve survivability; open items are flagged rather than hidden.

Embedded defenses (in the statutory text)

- Mathews v. Eldridge pre-deprivation notice schedules — 45/60/180 days (Sec. 1802/1804).
- Enumerated-sector limit citing West Virginia v. EPA for major-questions (Sec. 004(c-1)).
- Article III standing specifications and Commerce Clause findings (Sec. 1801, 1805(d), Schedule B).
- Just-compensation architecture for Title XIV divestitures, \$2B reserve, and severability (Sec. 205).

Actively hardened against recent doctrine

Following *SEC v. Jarkesy* (2024), penalty adjudication moved out of in-agency proceedings: no civil penalty, clawback, seizure, or forfeiture is finally assessed except by a U.S. District Court with the Seventh Amendment jury right preserved (Sec. 1606). Removal exposure addressed by making the Administrator removable at will (*Seila Law*) and designating ALJs as *Lucia*-compliant inferior officers confined to equitable, status-quo preservation. Appropriations exposure addressed by recasting SIRF draws as express standing statutory appropriations on the *CFPB v. CFSA* (2024) formula, with enforcer budgets separated from collected penalties.

Open items documented in the full Legal Architecture Review (Policy Vault): proportionality governors for fixed penalty multipliers (Eighth Amendment), preserving a guaranteed Article III takings remedy (avoiding exclusive arbitration under *Knick*), and a compulsory-license/28 U.S.C. §1498 model for patent recapture. Committee counsel are invited to audit these against the timestamped vault text.

7. Priority Entry Points

The practical question is not which committee passes the full NSRA, but which provisions enter the institutional record as standalone or amendment vehicles.

Pharmaceutical parity (Finance / Ways & Means)

Highest standalone probability. G7 median pricing has appeared across prior vehicles; the automatic compulsory-licensing trigger is the distinguishing element. Sponsor profile: Finance members with Medicare/Medicaid assignments who have filed drug-pricing bills. File standalone first to establish the record; identity-preservation risk is high (absorption into a broader vehicle without attribution) — the vault text is the timestamped reference.

Veteran healthcare (Veterans' Affairs)

Title XXV aligns with the author's background as a former VA ambulatory-care director. Veterans' Affairs panels are among the most bipartisan in Congress and regularly pass standalone veterans-health bills. Highest-value validators: former VA Secretaries. This is where the founder biography carries the most weight.

Manufacturing & supply-chain sovereignty (Commerce / Armed Services)

Titles XI and XXXII align with existing CHIPS-Act infrastructure and command the broadest coalition — economic nationalists, defense hawks, and industrial-policy advocates simultaneously.

8. Evidence Standard & How to Engage

Every material claim is classified by source authority, calculation method, confidence, sensitivity, and external-review status (Government baseline · Statutory text verified · Internally modeled · Sensitivity tested · Legal review completed · Independent review pending · Congressional score pending). The models remain proprietary; the standard they are held to is public.

The full statutory text, Schedule G methodology, committee analysis, Legal Architecture Review, and the Figure-by-Figure Verification guide are in the Policy Vault. To request the section-by-section, a title-specific briefing, or a working session with the principal architect:

contact@theamericadeal.org · TheAmericanDeal.org/bill-text